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Mutual Non-Disclosure Agreement (MNDA)

Cover Page

Field	Description	Value
Client Legal Name	Name of the party disclosing and receiving confidential information	Swainston Consulting Group
Vendor Legal Name	Name of the other party to this MNDA	TechTide AI
Client Address	Principal place of business of the Client	Henderson, Nevada
Vendor Address	Principal place of business of the Vendor	Columbus, Ohio
Purpose	Briefly describe the purpose for which the parties will exchange information.	Evaluating potential custom software development engagement.
Effective Date	Date on which the MNDA becomes effective	August 21, 2025
Term of MNDA	Period during which confidential information may be disclosed.	1 year from Effective Date or until terminated
Confidentiality Period	How long the information will be protected after disclosure.	5 years
Governing Law	State law that governs this MNDA (default Colorado)	Nevada
Jurisdiction/Courts	Courts having exclusive jurisdiction over disputes.	Las Vegas, Nevada
Additional Terms	Space to add modifications or additional clauses (if any)	

By executing this Cover Page, the parties agree to the terms of this Mutual Non-Disclosure Agreement ("MNDA") as of the Effective Date listed above. Each party represents that its signatory is duly authorized to bind that party.

Standard Terms

1. Introduction

This MNDA allows each party (a "**Disclosing Party**") to share certain information with the other (a "**Receiving Party**") solely for the **Purpose** described on the Cover Page. **"Confidential Information"** means any information the Disclosing Party designates as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure. The existence and status of the parties' discussions and the information on the Cover Page are also Confidential

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Information. Confidential Information includes technical and business information, product designs and roadmaps, pricing, trade secrets, inventions and know-how.

2. Use and Protection of Confidential Information

2.1 **Use of Information.** The Receiving Party will use Confidential Information solely to fulfil the Purpose and for no other purpose.

2.2 **Care and Safeguards.** The Receiving Party must protect the Disclosing Party's Confidential Information using at least the same degree of care it uses for its own similar information and no less than a reasonable standard of care.

2.3 **Permitted Recipients.** The Receiving Party may disclose Confidential Information only to its employees, advisors and contractors who need to know the information for the Purpose and who are bound by confidentiality obligations at least as restrictive as this MNDA. The Receiving Party will remain responsible for any breach of this MNDA by its representatives.

3. Exceptions

The obligations in Section 2 do not apply to information that the Receiving Party can prove: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was rightfully known or possessed by the Receiving Party before receipt; (c) is rightfully received from a third party without breach of any duty; or (d) is independently developed without use of or reference to the Disclosing Party's Confidential Information.

4. Disclosures Required by Law

If the Receiving Party is required by law, court order or governmental regulation to disclose any Confidential Information, it may do so but, to the extent legally permissible, will provide the Disclosing Party with prompt notice so that the Disclosing Party may seek a protective order or otherwise protect its interests.

5. Term and Termination

This MNDA commences on the **Effective Date** and continues for the **MNDA Term** stated on the Cover Page. Either party may terminate this MNDA for any reason upon notice to the other. The Receiving Party's obligations with respect to Confidential Information will survive for the **Confidentiality Period** listed on the Cover Page, notwithstanding any termination of the MNDA.

6. Return or Destruction of Confidential Information

Upon expiration or termination of this MNDA, or upon the Disclosing Party's earlier request, the Receiving Party will (a) cease using the Confidential Information; (b) promptly return or destroy all Confidential Information in its possession or control; and (c) upon request, certify in writing its compliance with this Section. The Receiving Party may retain archival copies of Confidential Information in backups required by law or internal record-keeping policies, provided that such copies remain subject to this MNDA.

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7. Proprietary Rights

All Confidential Information remains the property of the Disclosing Party. Except for the limited rights explicitly granted herein, no rights or licences (including any intellectual-property rights) are granted by either party to the other under this MNDA.

8. Disclaimer

All Confidential Information is provided "**as is**" without any warranty of any kind. The Disclosing Party disclaims all warranties, express or implied, including warranties of merchantability, fitness for a particular purpose and non-infringement.

9. Governing Law and Jurisdiction

This MNDA and any disputes arising under it are governed by the laws of the **Governing Law** state indicated on the Cover Page, without regard to conflict-of-laws principles. The parties consent to exclusive jurisdiction and venue in the **Courts** listed on the Cover Page for any action arising out of or relating to this MNDA.

10. Equitable Relief

Each party acknowledges that a breach of this MNDA may cause irreparable harm for which monetary damages are an insufficient remedy. The Disclosing Party is entitled to seek injunctive or other equitable relief in the event of a breach or threatened breach of this MNDA, without the necessity of posting bond or proving actual damages.

11. General

11.1 **Entire Agreement.** This MNDA (including the Cover Page) constitutes the entire understanding between the parties regarding its subject matter and supersedes all prior or contemporaneous agreements and understandings.

11.2 **Assignment.** Neither party may assign this MNDA without the prior written consent of the other, except that either party may assign it upon written notice in connection with a merger, reorganisation or sale of substantially all of its assets. Any non-permitted assignment is void.

11.3 **Amendments and Waivers.** Any amendment or waiver of this MNDA must be in writing and signed by both parties. No failure or delay by either party in exercising any right hereunder constitutes a waiver of that right.

11.4 **Severability.** If any provision of this MNDA is held unenforceable, that provision will be limited to the minimum extent necessary so that the remainder of this MNDA will remain in effect.

11.5 **Counterparts and Signatures.** This MNDA may be executed in counterparts (including electronically), each of which is deemed an original and which together constitute one instrument. Electronic signatures are effective.

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12. No Publicity & Social Media

Without the prior written consent of the other party, neither party will: (a) issue any press release or public announcement about the Purpose or the existence of this MNDA; (b) use the other party's name, trademarks or logos in marketing materials, case studies or customer lists; nor (c) post about the parties' discussions or any Confidential Information on social-media platforms (including LinkedIn, X/Twitter, Facebook, Instagram, blogs or similar channels) or other publicity channels. This obligation survives termination of the MNDA.

Signature Blocks

Client: Swainston Consulting Group

By: Signed by: LANE SWAINSTON E887082A558B4DE...

Name: Lane Swainston

Title: Owner, Principal Consultant

Date: August 21, 2025 8/25/2025

Vendor: TechTide AI

By: Signed by: Alex Cinovoj 5443EA89D2D84CB...

Name: Alex Cinovoj

Title: Owner

Date: August 21, 2025 8/25/2025